

**SERVICE CONTRACT
BETWEEN
BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOLS
AND
KOINONIA ENTERPRISES, LLC**

This Contract, entered into by and between the **Brecksville-Broadview Heights City School District** and **Koinonia Enterprises, LLC**, with its principal office located at 6161 Oak Tree Boulevard, Independence, Ohio 44131, hereinafter referred to as "Contractor", recites that:

WHEREAS, the parties desire to enter into a Contract whereby **Brecksville-Broadview Heights City School District** will provide reimbursement to **Koinonia Enterprises, LLC** for **transition based services for youth in the Brecksville-Broadview Heights City School District**.

NOW THEREFORE, in consideration of the mutual covenants contained herein, the parties do hereby agree as follows:

I. BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOLS OBLIGATIONS

- A. Brecksville-Broadview Heights City Schools shall monitor the quality of services delivered under this Contract in the following manner: regular communication with contractor and Brecksville-Broadview Heights staff, feedback from families, regularly scheduled progress meetings, and documentation review. In the event of an adverse finding, Brecksville-Broadview Heights City Schools will share the results of said finding with the Contractor, and will initiate corrective action to improve the quality of services in accordance with that level of service which is recognized as acceptable professional practice in the community in which services are provided and in accordance with the standards established by Brecksville-Broadview Heights City Schools.

II. CONTRACTOR OBLIGATIONS

- A. Contractor shall maintain all necessary insurance coverage, licenses, certifications, registrations and credentials required hereunder.
- B. Contractor shall provide transition-based services to enable students to be career ready upon graduation so they can be fully participating members of their community.
- C. Contractor shall provide specific activities to include Discovery Assessments for students, business engagement and job development, participation in parent education meetings and IEP meetings, career-based internship and exploration activities, and job coaching support (Exhibit 3)
- D. Contractor shall make available to Brecksville-Broadview Heights City Schools for review all records and data pertaining to payments, claims and services rendered to individuals under this contract. Contractor shall initiate corrective action where necessary to improve the quality of services in accordance with that level of service which is recognized as acceptable professional practice in the community in which services are provided.

- E. Contractor shall reply to and cooperate in arranging compliance with an identified program or fiscal audit. Contractor is liable to Brecksville-Broadview Heights City Schools for any adverse findings that result from an action it takes or fails to take in the implementation of its response to adverse audit findings.
- F. Contractor shall comply with all professional licensure and certification requirements, including but not limited to furnishing evidence of the following: Contractor shall conduct criminal background investigations of all staff in accordance with Ohio Revised Code § 5123.081. Contractor shall require that all staff meet the Ohio Department of Developmental Disabilities rules and regulations as applicable to Contractor. Contractor shall employ staff in sufficient numbers and with sufficient academic background and/or experience to meet the training, health, safety, social and personal needs of the individual as such needs are mutually agreed upon by the parties. Contractor shall comply with all local, state and federal requirements regarding non-discrimination, fair employment practices and wage/hour standards, and shall not discriminate in the provision of services on the basis of race, color, disability, religion, sex or national origin. Contractor shall provide evidence of appropriate state licensure and credentials as required for all personnel providing services under this Contract upon request.
- G. The Contractor agrees to submit all such programmatic and financial information as may reasonably be required by Brecksville-Broadview Heights City Schools:
1. To permit monitoring and evaluation of the faithful performance of services being rendered under this contract; and
 2. To allow effective program planning, service coordination and resource development.
- H. Contractor shall give notice of incidents adversely affecting health and safety pertaining to individuals receiving services under this Contract to Brecksville-Broadview Heights City Schools and shall provide reports to other persons and/or agencies as is required by applicable state and federal law. If a student is enrolled in services through the Cuyahoga County Board of Developmental Disabilities, "Major Unusual Incidents" and "Unusual Incidents" shall be defined for purposes of this Contract per the Ohio Administrative Code § 5123:2-17-02 and Contractor shall notify the Cuyahoga County Board of Developmental Disabilities and Brecksville-Broadview Heights City Schools within the timelines spelled out in said rule. If a student is not eligible with the Cuyahoga County Board of Developmental Disabilities, the incident and report would only be sent to Brecksville-Broadview Heights City Schools.
- I. Contractor shall provide and maintain, in full force and effect, general liability insurance covering the Contractor's activities under this contract. This shall include coverage for liability or casualty loss or claims arising from actions by or from the use or occupancy by Contractor of premises used by the Contractor in performance of its duties under this contract. Brecksville-Broadview Heights City Schools shall be included as an additional insured on the Contractor's liability insurance coverage. The Contractor shall provide Brecksville-Broadview Heights City Schools with a copy of the Contractor's liability insurance policy before providing services upon request. Such coverage shall be in an amount of no less than \$1,000,000.00/occurrence. Should

the policy have a general aggregate limit, such aggregate limit must not be less than \$2,000,000.00.

- J. Contractor shall comply with all applicable Workers' Compensation laws and acquire a certificate of insurance, evidence of which must be produced upon demand.
- K. Contractor shall provide upon request of Brecksville-Broadview Heights City Schools the names and addresses of Contractor's current Board members.
- L. The Contractor shall indemnify, save and hold harmless Brecksville-Broadview Heights City Schools and any agents or employees thereof, from any and all claims, demands, actions, or causes of action of whatsoever nature or character resulting from the performance of Contractor, its agents and/or employees, and shall make good any loss, damage or injury without the loss to Brecksville-Broadview Heights City Schools.
- M. Contractor shall name Brecksville-Broadview Heights City Schools as a source of funding in any audit, literature, brochure or presentation.
- N. Employees of the Contractor are not "public employees" for the purpose of membership in the Ohio Public Employees Retirement System.

III. CONTRACTOR FINANCIAL OBLIGATIONS

- A. Contractor will disclose for-profit or not-for-profit status on "Exhibit 1" attached hereto and made part of this Contract and a complete list of names and addresses of any individuals or organizations having a direct or indirect ownership or controlling interest of five percent (5%) or more in the Contractor.
- B. The Contractor agrees to keep a regular book of accounts maintained on an accrual basis of accounting and in such form as is consistent with generally accepted accounting principles. - Broadview Heights City Schools, or its authorized representative, shall have access to the books and records of the Contractor at any time during the normal business hours of the Contractor.
- C. If the Contractor is a non-federal entity that expends five-hundred thousand dollars (\$500,000) or more per year in federal awards, a single or program-specific audit shall be conducted in accordance with OBM Circular No. A-133. Any audit made in accordance with this paragraph shall be in lieu of any financial audit requirement under this Contract.

IV. CLAIMS AND PAYMENT

- A. The amount of this Contract shall not exceed **THIRTY THOUSAND (\$30,000) DOLLARS, serving up to TEN (10) STUDENTS.**
- B. Payment will be made monthly upon receipt of an invoice detailing services rendered.

- C. If through this partnership, additional students become eligible, Brecksville-Broadview Heights City Schools and Koinonia will come to a mutual agreement regarding an increase in the contract amount.

V. TERM AND TERMINATION

- A. The term of this Contract shall be from **OCTOBER 12th, 2020-MAY 28th, 2021**
- B. This Contract may be terminated by Brecksville-Broadview Heights City Schools at any time for cause or for no cause by providing the Contractor with notice in writing not less than ninety (90) days prior to terminating this Contract.
- C. In the event of a breach of any provision of this Contract, the non-breaching party may institute Conciliation Procedures as set forth in "Exhibit 2" attached hereto and made a part of this Contract. If the dispute is not resolved within the timeframes identified in the Conciliation Procedure, then the non-breaching party may terminate this Contract by written notice delivered via certified mail.

VI. CONFIDENTIALITY

The Contractor shall maintain the confidentiality of any records of individuals receiving service and shall not disclose them except as permitted by law; provided, however, that the laws of Ohio and the requirements of the Brecksville-Broadview Heights City Schools policies and procedures shall govern this provision. Any information gathered through service delivery is the property of the Brecksville-Broadview Heights City Schools and may not be released without a written authorization signed by the parent/guardian/individual served.

VII. MISCELLANEOUS

A. STANDARDS

All services provided under this Contract shall be in accordance with applicable local, state and federal rules and laws including but not limited to the requirements of Chapter's 5123 and 5126 of the Ohio Revised Code, the rules and regulations of the Ohio Department of Developmental Disabilities and any applicable requirements and regulations of the Brecksville-Broadview Heights City Schools.

B. ASSIGNMENT

Contractor may not assign this Contract or any part thereof without the written consent of the Brecksville-Broadview Heights City Schools.

C. ENTIRE CONTRACT

It is acknowledged by the parties that this Contract supersedes any and all previous written or oral Contracts between the parties concerning the subject matter of this Contract. Exhibits attached hereto are adopted by reference as though fully rewritten herein.

D. NOTICES

Notices required to be given herein shall be in writing and shall be sent via certified mail

to the following respective addresses:

TO: Brecksville-Broadview Heights City Schools

TO: Koinonia Enterprises, LLC
Diane Beastrom, President and CEO
6161 Oak Tree Boulevard
Independence, Ohio 44131

- E. In the event that any statute, regulation, rule or state or federal law is amended, the requirements of this Contract shall be automatically amended to reflect such modification without any further action by the parties.
- F. This Contract shall be governed by and interpreted in accordance with the laws of Ohio.

******* SIGNATURE PAGE TO FOLLOW *******

SIGNATURES

IN WITNESS WHEREOF, the parties by their duly authorized representatives have executed this Contract.

KOINONIA ENTERPRISES

BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOLS

Signature / Date

Signature / Date

Print Name

Print Name

Witness / Date

Witness / Date

***APPROVED AS TO FORM
OPINION NO.: 10-095
MICHAEL D. TODD
ASSISTANT PROSECUTING ATTORNEY
SUMMIT COUNTY, OHIO***

EXHIBIT 1

Status: _____ Not-for-Profit _____ For Profit

Names and addresses of any individuals or organizations having a direct or indirect ownership or control interest of 5% or more in Contractor.

NAME	ADDRESS

CONCILIATION PROCEDURE

In the event of disagreement between the parties as to their rights, duties and obligations under the Contractor Agreement, the following procedure shall be implemented, at the written request of either

STEP I The Chief Executive Officer of the contract agency shall indicate and detail the specific problem or conflict situation in writing to the other Chief Executive Officer/Superintendent with copies to the respective Board Chairpersons	Discovery	\$70.00
	Business Engagement/Site Development	\$30.00
	Career Exploration	\$70.00
	Community-Based Work Experiences (assessments, job coaching)	\$70.00
	Meetings (IEP, staff, or planning meetings)	\$30.00
	Family Engagement (home visits, events)	\$30.00
	Job Development	\$70.00
A meeting between the Executive Officers shall be scheduled to review the facts presented, obtain additional factual material and agree on a proposed resolution within the context of the established policies of the respective Boards within ten (10) working days after the original presentation of the issue. If no such resolution is achieved, the parties shall move to Step II.		Travel Training \$60.00

STEP II

Within ten (10) days of outcome of Step I, written factual materials produced during Step I detailing the problem and the reasons for failure to resolve same shall be presented to the Chairpersons of the respective Boards.

The Chairpersons will schedule within ten (10) working days a meeting which shall include the members of the Executive Committee of the respective Boards or selected Board members to review the facts and to make recommendations for resolution of the problem. Since resolution at this level may require policy modification of one or both Boards, a period of thirty (30) working days will be allowed for final resolution of problems at this level.

Neither party shall initiate any court action unless and until the conciliation procedure set forth in this policy has been completed.



Discovery – Discovery is a person-centered assessment and planning process that determines preferences, interests, skills, and support needs/accommodations. It results in a Career Discovery Profile and can be used to assist the IP team in identifying a person’s place on the path to employment and the desired employment outcome. The profile assists team members to develop services, supports and the action steps needed to gain community employment.

Business Engagement/Site Development – This service focuses on engaging business and securing sites for Community Based Work Experiences for the students in the Compass program. Businesses are selected and engaged off Compass assessments done with students to gauge their interests and skills.

Career Exploration: This service focuses on exploring specific employment options and jobs at various businesses. It may involve informational interviews with individuals or employers who are performing the duties or hiring for the duties to ask questions about the job tasks, training required, and salaries. It may also involve job shadowing.

Community Based Work Experiences – Serving as the primary service of the Compass program, these vocational outings that occur where students are paired off Compass assessments to a designated work site. Students have a vocational goal(s) assigned which correlates with their vocational IEP goal and are assigned job duties at the business they are working at to assess employability and job readiness. A report with skill scoring and a written narrative on progress for each student is generated for each community-based work experience.

Meetings – Includes annual IEP meetings, planning meeting between Koinonia Enterprises and school employees involved in the Compass program, and any staff meetings that Koinonia Enterprises is requested to attend.

Family Engagement – Includes home visits (optional and per request or discretion of the family) and any family events that occur throughout the year.

Job Development - Job development is an individualized (1:1) service to develop a strategy to achieve competitive integrated employment. It may include filling out a job application, interviewing for a job, identifying necessary accommodations, and negotiating with an employer for customized employment. This service is intended to result in achievement of competitive integrated employment, consistent with the job seeker's personal and career goals as identified in the IP, as determined through assessments, career exploration, career discovery, community-based work experiences, and/or the employment planning process.

Travel Training - Travel training is a service used to assess an individual’s skills and help them learn the skills they need to travel safely and as independently as possible throughout their community. Training topics can include:

- Identification of street signs and landmarks, knowledge of bus routes and schedules
- Appropriate behavior in the community and on the bus
- Utilizing bus fares cards and IDs
- Effective communication with people in the community
- Other topics that promote navigating the community as independently as possible

EXHIBIT 3

